

EVALUATION AGREEMENT – CLOUD SERVICES

This Evaluation Agreement – Cloud Services, including any additional documents referenced herein, (“**Agreement**”) governs certain Liferay offerings of hosted applications, including any related Documentation and application programming interfaces (collectively the “**Cloud Services**”) and sets forth the terms and conditions for Your use of Cloud Services provided to you by Liferay for evaluation, trial, or similar not-for-production use purposes (“**Evaluation Purposes**”).

PLEASE READ THIS AGREEMENT CAREFULLY BEFORE ACCESSING OR IN ANY WAY USING THE CLOUD SERVICES. BY CLICKING YOUR ASSENT OR ACCESSING OR IN ANY WAY USING THE CLOUD SERVICES, YOU SIGNIFY YOUR ASSENT TO AND ACCEPTANCE OF THIS AGREEMENT AND ACKNOWLEDGE THAT YOU HAVE READ AND YOU UNDERSTAND THE TERMS. IF YOU ARE AN INDIVIDUAL ACTING ON BEHALF OF AN ENTITY, YOU REPRESENT THAT YOU HAVE THE AUTHORITY TO ENTER INTO THIS AGREEMENT ON BEHALF OF THAT ENTITY. IF YOU DO NOT ACCEPT THE TERMS OF THIS AGREEMENT, THEN YOU MUST NOT ACCESS OR IN ANY WAY USE THE CLOUD SERVICES.

1. Definitions

“**Acceptable Use Policy**” has the meaning set forth in Section 3.4 below.

“**Affiliates**” means in the case of a company, an entity that owns or controls, is owned or controlled by, or is under common control or ownership with a party, where ‘control’ is the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of an entity, whether through ownership of voting shares, by contract or otherwise.

“**Documentation**” means the documentation generally made available by Liferay in conjunction with Cloud Services or any parts thereof at dev.liferay.com.

“**Evaluation Period**” means a period from the initial provisioning of access to the Cloud Services to You by Liferay for Evaluation Purposes until such time Liferay terminates that access in Liferay’s sole discretion or terminated in accordance with Section 6 below.

“**Liferay**” means Liferay, Inc. with a principal place of business at 1400 Montefino Avenue, Diamond Bar, CA 91765.

“**You**” means, as applicable, the individual or the entity on whose behalf the individual is acting and “**Your**” shall be construed accordingly.

2. Rights to the Cloud Services

Subject to the restrictions set forth in this Agreement, Your compliance with the Acceptable Use Policy, and any limitations specified on the evaluation registration page, Liferay grants You a non-transferable, non-exclusive, worldwide (subject to Section 7, below), non-sublicensable right to use the Cloud Services for Evaluation Purposes only and limited to the Evaluation Period. You acquire only the right to access and use the Cloud Services and do not acquire any rights of ownership in the Cloud Services. Liferay reserves all rights to the Cloud Services not expressly granted to Customer under this Agreement.

3. Restrictions, Intellectual Property Rights, Your Content

3.1 General Restrictions

The rights granted to You under this Agreement do not authorize You (nor may You allow any third party) to: (i) reverse engineer, translate, modify, loan, convert or apply any procedure or process to the Cloud Services in order to ascertain, derive, and/or appropriate for any reason or purpose, the source code or source listings of the software utilized by Liferay in the provision of the Cloud Services or any trade secret information or process contained in the Cloud Services (except as permitted under applicable law); (ii) execute or incorporate other software (except for approved software as more particularly identified in the Documentation or specifically approved by Liferay in writing) into the Cloud Services, or create a derivative work of any part of the Cloud Services including but not limited to, any software utilized by Liferay in the provision of the Cloud Services; (iv) remove any product identification, trademarks, trade names or titles, copyrights, legends or any other proprietary marking in the Cloud Services; (v) disclose the results of any benchmarking of the Cloud Services (whether or not obtained with Liferay’s assistance) to any third party; (vi) use Cloud Services for the purpose of building a competitive product or service to the Liferay software or Cloud Services or copying Cloud Services’ features or user interface; (vii) use any of the Cloud Services in violation of any applicable laws (including i. e. data protection laws, export or IP laws) or for any illegal activities or promotion, solicitation or encouraging of

illegal activities and substances; (viii) use Cloud Services in a manner that might affect availability, functionality, and enjoyment of the Cloud Services by other users or third parties (such as unauthorized access to the accounts of other customers, harassing other users or third parties, any attempts to circumvent agreed limitations or the Service, intercepting, unauthorized monitoring or penetration, performance, vulnerability or security testing of the Cloud Service or breaching security measures, use for illegal or unlawful file sharing, launching or facilitating a denial of service attack (DoS) from or on Cloud Service, hacking, cracking, spoofing or defacing any portion of the Cloud Service, posting, transmitting, or distributing spam mail, mass mailings, chain letters, any robot, spider, site search/retrieval application, or other automatic or manual process or device to retrieve or index data or “data mine”); or (ix) use Cloud Services for any purposes that might impact life, health or environment or telecommunication services, or use of the Cloud Services as “miner” or “forder” of cryptocurrencies or using Cloud Services to operate a general-purpose proxy or “open proxy”. You agree to indemnify, defend and hold Liferay harmless from and against any costs, losses, liabilities, claims or expenses (including reasonable attorneys’ fees) arising out of any allegation or claim to the extent is based on a violation of this Section 3.1.

3.2 Limiting Devices

You are hereby notified that the Cloud Services may contain or be subject to time-out devices, counter devices, and/or other devices intended to ensure the limits of the rights granted to Customer under this Agreement will not be exceeded (“**Limiting Devices**”). If the Cloud Services contain or are otherwise subject to Limiting Devices, Liferay will provide You with materials necessary to use the Cloud Services to the extent permitted. You may not tamper with or otherwise take any action to defeat, disable or circumvent a Limiting Device or timing or use restrictions that are built into, defined or agreed upon, regarding the Cloud Services, including but not limited to, resetting the Unit amount.

3.3 Derivative Works

You acknowledge and agree that title to the Cloud Services including but not limited to, any software utilized by Liferay in the provision of the Cloud Services and each component, copy and modification, including but not limited to all derivative works, improvements or upgrades (“**Derivative Works**”) whether made by Liferay, You or on Liferay’s or on Your behalf, including those made at Your suggestion and all associated intellectual property rights, are and shall remain the sole and exclusive property of Liferay, its Affiliates and/or its licensors. As between You and Liferay, You shall own all independently developed code and documentation and any associated intellectual property rights developed by You or on Your behalf that are separate from the code base of the Cloud Services (i.e. non-Derivative Works).

3.4 Acceptable Use Policy, Your Content

As a precondition to the use of Cloud Services, You must also agree to comply with the Liferay Acceptable Use Policy, most recent version of which is available at: www.liferay.com/legal/doc/policies/aup/1101811 (“**Acceptable Use Policy**”), and You additionally understand and agree that: (i) You will not use Cloud Services provided to You pursuant to this Agreement to process any real-life data or other data other than items explicitly provided to you by Liferay and (ii) any Content (as defined in the Acceptable Use Policy) entered by You into Cloud Services and/or any customizations made to the Cloud Services by You or on Your behalf during the Evaluation Period will be irretrievably removed from Cloud Services

upon expiration of the Evaluation Period. Liferay may, but is not obligated, to make available functionality with the Cloud Services to allow You to export Your Content and/or customizations before the expiration of the Evaluation Period. You agree to indemnify, defend and hold Liferay harmless from and against any costs, losses, liabilities, claims or expenses (including reasonable attorneys' fees) arising out of any allegation or claim to the extent is based on a violation of this Section 3.4.

4. Disclaimer of Warranty

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE CLOUD SERVICES ARE PROVIDED AND LICENSED "AS IS" WITHOUT WARRANTY OF ANY KIND, EITHER EXPRESSED OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTY OF QUALITY, MERCHANTABILITY, TITLE, NON-INFRINGEMENT AND FITNESS FOR A PARTICULAR PURPOSE, AND SUCH IMPLIED WARRANTIES, ANY OTHER WARRANTIES, REPRESENTATIONS, CONDITIONS AND TERMS, EXPRESS OR IMPLIED (AND WHETHER IMPLIED BY STATUTE, COMMON LAW, COURSE OF DEALING, TRADE USAGE OR OTHERWISE) ARE HEREBY EXCLUDED TO THE FULLEST EXTENT PERMITTED BY LAW. LIFERAY DOES NOT WARRANT THAT (I) THE CLOUD SERVICES WILL MEET YOUR REQUIREMENTS, (II) THE USE OF THE CLOUD SERVICES WILL BE UNINTERRUPTED OR ERROR FREE, (III) THE CLOUD SERVICES WILL COMPLY WITH REGULATORY REQUIREMENTS APPLICABLE TO YOU OR APPEAR PRECISELY AS DESCRIBED IN THE ACCOMPANYING DOCUMENTATION. YOU AGREE THAT YOU ARE SOLELY RESPONSIBLE FOR THE RESULTS OBTAINED FROM THE USE OF THE CLOUD SERVICES.

WITHOUT LIMITING THE GENERALITY OF THE FOREGOING DISCLAIMER, THE CLOUD SERVICES IS NOT SPECIFICALLY DESIGNED, MANUFACTURED OR INTENDED FOR USE IN (1) FACILITIES OR ENVIRONMENTS REQUIRING FAILSAFE PERFORMANCE, INCLUDING BUT NOT LIMITED TO (A) THE PLANNING, CONSTRUCTION, MAINTENANCE, CONTROL, OR DIRECT OPERATION OF NUCLEAR FACILITIES, (B) AIRCRAFT NAVIGATION, CONTROL OR COMMUNICATION SYSTEMS, WEAPONS SYSTEMS, (C) DIRECT LIFE SUPPORT SYSTEMS OR (2) SIMILAR ULTRA-HAZARDOUS OR STRICT LIABILITY ACTIVITIES AND YOU ARE SOLELY RESPONSIBLE AND EXPRESSLY ASSUME ALL RISK FOR ANY SUCH USE.

5. Exclusion and Limitation of Liability, Risk Allocation

5.1. Exclusion of Liability

TO THE MAXIMUM EXTENT PERMITTED UNDER APPLICABLE LAW, IN NO EVENT WILL LIFERAY OR ANY OF ITS AFFILIATES HAVE ANY LIABILITY TO YOU OR YOUR AFFILIATES, UNDER ANY LEGAL OR EQUITABLE THEORY, WHETHER IN CONTRACT, TORT (INCLUDING, WITHOUT LIMITATION, NEGLIGENCE), PRODUCT LIABILITY, STATUTE OR OTHERWISE, FOR OR IN CONNECTION WITH:

- (I) ANY ECONOMIC LOSSES, LOSS OF REVENUE, LOSS OF CUSTOMERS OR BUSINESS, LOSS OF OR DAMAGE TO REPUTATION OR GOODWILL, LOSS OF ANTICIPATED PROFITS, LOSS UNDER OR IN RELATION TO ANY OTHER CONTRACT, LOSS OF DATA OR INTERRUPTION OF SERVICES, LOSS OF ANTICIPATED SAVINGS OR BENEFITS, OR COVER COSTS OR ANALOGOUS COST RELATED TO THE PROCUREMENT OF REPLACEMENT SERVICES;
- (II) ANY LOSSES, COSTS, EXPENSES OR DAMAGES ARISING OUT OF OR IN CONNECTION WITH ANY MALFUNCTIONS, REGULATORY NON-COMPLIANCE, DELAYS, PRODUCT LIABILITY, RELIANCE, BREACH OF ANY IMPLIED DUTY; OR
- (III) ANY LOSSES, COSTS, EXPENSES OR DAMAGES OTHER THAN DIRECT DAMAGES, INCLUDING WITHOUT LIMITATION, ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, CONSEQUENTIAL OR PUNITIVE DAMAGES, LOSSES, COSTS OR EXPENSES.
- (IV) ANY LOSSES, COSTS, EXPENSES OR DAMAGES ARISING OUT OF OR IN CONNECTION WITH YOUR VIOLATIONS OF THE DATA RESTRICTIONS SET FORTH IN SECTION 3.4 OR YOUR BREACH OF OBLIGATIONS, UNDER APPLICABLE LAW OR CONTRACT, TO THIRD PARTIES WITH RESPECT TO THE DATA OF THIRD PARTIES.

IN EACH CASE (I) THROUGH (IV), WHETHER OR NOT FORSEEABLE; EVEN IF LIFERAY, ITS AFFILIATES OR A BUSINESS PARTNER HAS BEEN

ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, LOSSES, COSTS OR EXPENSES.

5.2. Limitation of Liability

FOR ALL EVENTS AND CIRCUMSTANCES AND TO THE MAXIMUM EXTENT PERMITTED UNDER APPLICABLE LAW, LIFERAY'S AND ITS AFFILIATES' AGGREGATE AND CUMULATIVE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT, INCLUDING WITHOUT LIMITATION ON ACCOUNT OF PERFORMANCE OR NON-PERFORMANCE OF OBLIGATIONS, REGARDLESS OF THE FORM OF THE CAUSE OF ACTION, WHETHER IN CONTRACT, TORT (INCLUDING, WITHOUT LIMITATION, NEGLIGENCE), STATUTE OR OTHERWISE WILL NOT EXCEED FIFTY UNITED STATES DOLLARS (\$50.00).

5.3. Allocation of Risk

THE PROVISIONS OF SECTION 4 AND THIS SECTION 5 ALLOCATE THE RISKS UNDER THIS AGREEMENT BETWEEN LIFERAY AND YOU. THIS ALLOCATION IS AN INTRINSIC PART OF, AND THE BASIS OF, THE BARGAIN BETWEEN YOU AND LIFERAY AND WITHOUT SUCH ALLOCATION LIFERAY WOULD NOT HAVE ENTERED INTO THIS AGREEMENT. THE LIMITATIONS, EXCLUSIONS AND DISCLAIMERS CONTAINED IN SECTIONS 4 AND 5 APPLY TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, EVEN IF ANY REMEDY (INCLUDING ANY LIMITED OR EXCLUSIVE REMEDY) PROVIDED FOR IN THIS AGREEMENT FAILS IN ITS ESSENTIAL PURPOSE.

6. Termination, Suspension

Liferay may suspend, terminate or disable Your access to the Cloud Services at any time at its own discretion, without notice and without any liability to You. In particular and without limiting other rights that Liferay may have, Liferay will suspend, terminate or disable Your access to the Cloud Services, or take down Your Content as defined in the Acceptable Use Policy immediately, if Liferay reasonably believes You has breached the Agreement, the Acceptable Use Policy, applicable law or have violated or are violating any third party rights.

7. Export Control

You: (i) acknowledge and agree that the Cloud Services and its components are subject to export controls under the U.S. Commerce Department's Export Administration Regulations ("EAR"); (ii) represent and warrant that You are not located in any country listed in Country Group E:1 in Supplement No. 1 to part 740 of the EAR; (iii) shall not export, re-export, divert, or transfer the Cloud services or any parts thereof to any prohibited destination or to any party who has been prohibited from participating in US export transactions by any federal agency of the US government; (iv) shall not use or transfer the Cloud Services for use in connection with the design, development or production of nuclear, chemical or biological weapons, or rocket systems, space launch vehicles, or sounding rockets or unmanned air vehicle systems; and (v) acknowledge and agree that if You export, re-export, or transfer the Cloud services or any parts thereof to eligible recipients, then You shall: (a) strictly comply with all applicable export control laws, (b) obtain all necessary licenses and permits, including those required by the EAR; and (c) submit all reports required by the Commerce Department's Bureau of Industry and Security, which include the name and address (including country) of each transferee. Liferay will not have any liability for the failure to obtain a U.S. export license to export the Cloud Services or any parts thereof. You further acknowledge and agree that countries including the United States may restrict the import, use, or export of encryption products (which may include the Cloud Services or any parts thereof) and agree that You shall be solely responsible for compliance with any such import, use, or export restrictions. You shall indemnify Liferay, including its officers, directors and agents from all losses and liabilities (including reasonable attorneys fees and court costs) arising from any breach of Your representations, warranties or obligations under this Section.

8. Governing Law, Consent to Jurisdiction

The validity, interpretation and enforcement of the Agreement (and any dispute or claim relating to it, or its formation, existence, construction,

performance or termination) will be governed by and construed in accordance with the laws of the United States and of the State of California without giving effect to the conflicts of laws provisions thereof or the United Nations Convention on Contracts for the International Sale of Goods. All disputes or claims arising out of or relating to the Agreement or its subject matter will be submitted to the exclusive jurisdiction of the state or federal courts of competent jurisdiction located in Los Angeles County, California and each party irrevocably consents to such personal jurisdiction and waives all objections to this venue. In the event the Uniform Computer Information Transactions Act (UCITA) or any similar federal or state laws or regulations are enacted, it will not apply to this Agreement, and the governing law will remain as if such law or regulation had not been enacted.

9. General

If any provision of this Agreement is held to be unenforceable, such ruling shall not affect the enforceability of the remaining provisions. The affected provision(s) will be deemed amended to the minimum extent necessary to render it valid and enforceable in conformity with applicable law and parties' intent as expressed in this Agreement. The delay or failure of either party to exercise any rights under this Agreement will not constitute or be deemed a waiver or forfeiture of such rights. No waiver will be valid unless in writing and signed by an authorized representative of the party against whom such waiver is sought to be enforced. This Agreement constitutes the entire agreement between the parties with respect to the use of the Cloud Services provided hereunder and supersedes all prior understandings regarding such subject matter. Each party acknowledges that in entering into this Agreement it has not relied on any representation, warranty or collateral contract or other assurance except those set out therein.